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CASE NAME: Hilda Reyes, et al. v. Motor Cycle Travels of the Empire, et al.

1. Defendant Eng Tan's Demurrer to Complaint; and
2. Defendants Mad Atoms, LLC and Eng Tan's Motion to Strike Portions of Plaintiff's Complaint

TENTATIVE RULING

The Court SUSTAINS Defendant Eng Tan's Demurrer to the First and Second Causes of Action in the Complaint with 20 days' leave to amend.

The Court GRANTS the motion to strike as to the wrongful death causes of action, but DENIES the motion as to the survival causes of action. The Court hereby STRIKES paragraph 64 of the Complaint as it pertains to the wrongful death causes of action without leave to amend.

Defendants Eng Tan and Mad Atoms, LLC are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a survival/wrongful death action. On September 18, 2025, plaintiffs Hilda Reyes and Sergio Ramirez, individually and as successors in interest to the Estate of Christian Ramirez (collectively, Plaintiffs) filed this action against defendants Motor Cycle Travels of the Empire, Empire Motor Travels, LLC, Mad Atoms, LLC (Mad Atoms), Eng Tan (Tan) (collectively, Defendants), and Does 1-50, alleging causes of action for wrongful death and survival action based upon general negligence, and wrongful death and survival action based on upon premises liability.

On August 6, 2026, Tan demurred to the Complaint. On September 16, 2026, Plaintiff opposed Tan's demurrer. On September 22, 2026, Tan replied to the opposition – albeit one day late.

On August 6, 2026, Tan and Mad Atoms moved to strike portions of the Complaint. On September 16, 2026, Plaintiffs opposed the motion to strike. . On September 22, 2026, Tan and Mad Atoms replied to the opposition – albeit one day late.

LEGAL STANDARD – Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

A demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits”].)

A demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES – Demurrer

Tan's demurrer appears to cite a nonexistent case called *United States Liability Insurance Co. v. Huggins* (1976) 56 Cal.App.3d 862, 866. (Demurrer, 6:4-5.) The Court could not find any case by this name. The Court will discuss this further with Tan's counsel at the hearing on the demurrer.

Plaintiff's opposition incorrectly attributes the following quotation to *Comm. On Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197 and *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531: “less particularity is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff.” (Opp., 3:6-8.) While there are some of these words found in those cases, the exact quoted language is not found in either case. The Court will discuss this further with Plaintiff's counsel at the hearing on the demurrer.

DISCUSSION – Demurrer

Meet and Confer

Per Code of Civil Procedure section 430.41, subdivision (a), Tan was required to meet and confer in person, by telephone, or by video conference before bringing this demurrer. (Code Civ. Proc., § 430.41, subd. (a).) Tan failed to meet and confer by any of these methods. (See *Daryanavard Decl.*, ¶¶ 2-3.) Nevertheless, the Court may not overrule a demurrer for failure to adequately meet and confer. (Code Civ. Proc., § 430.41, subd. (a)(4).) The Court admonishes Tan to comply with the Code of Civil Procedure going forward.

First Cause of Action - Wrongful Death and Survival Action based upon General Negligence

To state a cause of action for negligence, the plaintiff must allege facts demonstrating, “(1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries. [Citations.]” (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) To state a cause of action for wrongful death, the plaintiff must allege facts demonstrating a wrongful act or neglect on the part of one or more persons that caused the death of another person. (Musgrove v. Silver (2022) 82 Cal.App.5th 694, 705.)

Unlike a cause of action for wrongful death, a survivor cause of action is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event. (Grant v. McAuliffe, supra, 41 Cal.2d at p. 864, 264 P.2d 944.) The survival statutes do not create a cause of action. Rather, “[t]hey merely prevent the abatement of the cause of action of the injured person, and provide for its enforcement by or against the personal representative of the deceased.” (Ibid.)

A cause of action that survives the death of a person passes to the decedent’s successor in interest and is enforceable by the “decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.30.) In the typical survivor action, the damages recoverable by a personal representative or successor in interest on a decedent’s cause of action are limited by statute to “the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and do not include damages for pain, suffering, or disfigurement.” (Code Civ. Proc., § 377.34, italics added.)

(Quiroz v. Seventh Ave. Ctr. (2006) 140 Cal.App.4th 1256, 1264-1265 (Quiroz), italics in original.)

Tan demurs to the First Cause of Action for wrongful death and survival action based upon general negligence on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action and on grounds of uncertainty. Tan contends the Complaint pleads only his status as an owner and alleges no particularized facts showing that he personally participated in, controlled, knew of, or caused the events, and that under California law ownership or entity status alone does not create individual tort liability absent personal participation. Tan argues the Complaint improperly lumps him together with the entity defendants and Doe defendants through collective “and/or” allegations, leaving him unable to determine what conduct is attributed to him, and that its allegations of undertaking, knowledge, and causation are conclusory.

In opposition, Plaintiffs respond that the Complaint alleges conduct, not status — that Tan personally owned and controlled the premises and its tenants’ activities, personally leased and rented the warehouse for the party, personally observed crime on the property, and had actual notice of prior violent crime there — all of which must be accepted as true on demurrer. Plaintiffs argue that Tan’s lead authority, *Frances T. v. Vill. Green Owners Assn.* (1986) 42 Cal.3d 490 (Frances T.), actually holds individuals personally liable for their own tortious conduct, including negligent-security decisions, regardless of corporate status, and that his cited entity-shield and alter-ego principles are irrelevant because Plaintiffs seek to hold Tan liable for his own tort, not an entity’s debt. Plaintiffs contend the Complaint adequately pleads duty, foreseeability, and causation under the sliding-scale standard — pleading both minimally burdensome measures requiring only ordinary foreseeability and a three-year history of similar on-premises crime establishing heightened foreseeability — and that the cases Tan relies on were decided on summary judgment, not demurrer. Plaintiffs argue the uncertainty demurrer is disfavored and must be overruled because the missing information is within Tan’s own knowledge, and they alternatively request leave to amend as this is the first pleading challenge.

The Court finds the Complaint alleges sufficient facts to state causes of action for wrongful death and survival action. Plaintiffs correctly argue that *Frances T.* holds that individuals may be liable for their own tortious conduct, regardless of whether they acted on behalf of the corporation. (See *Frances T.*, supra, 42 Cal.3d at p. 504.) The Complaint alleges that Tan owned and controlled the property, and that a pattern of violent criminal activity had been occurring on the property for at least three years before decedent Christian Ramirez (Decedent) was killed. (Compl., ¶¶ 5-11, 16-24.) The Court finds these allegations sufficient to demonstrate that Tan knew or should have known about the conditions of the property before the Decedent was killed. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1203 [“The cases require that an owner must have actual or constructive notice of the dangerous condition before incurring liability. [Citations.]”].) The Complaint alleges actions Tan failed to take to secure the property and avoid this situation. (Compl., ¶ 46.) The Complaint further alleges that Decedent

died the day after he was shot, which supports the survival action. (Compl., ¶¶ 17-18.) The Court finds these allegations sufficiently support Plaintiff's claims against Tan to withstand a general demurrer.

However, the Court notes an issue that was not specifically raised in the demurrer, which is that this cause of action combines two causes of action into one, i.e., wrongful death and survival action. (See Compl., ¶¶ 39-63.) Wrongful death and survival actions are separate causes of action. (Quiroz, supra, 140 Cal.App.4th at pp. 1264-1265.) A complaint that improperly combines two causes of action into one is subject to demurrer for uncertainty. (Zumbrun v. Univ. of S. California (1972) 25 Cal.App.3d 1, 9.) Plaintiff can remedy this by pleading these causes of action separately in an amended complaint.

Based on the foregoing, the Court SUSTAINS the demurrer to the First Cause of Action with leave to amend.

Second Cause of Action - Wrongful Death and Survival Action based upon Premises Liability

"The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.)

Tan demurs to the Second Cause of Action for wrongful death and survival action based upon premises liability on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action and on grounds of uncertainty. The parties' arguments here are the same as those set forth above. Accordingly, for the same reasons set forth above, the Court SUSTAINS the demurrer to the Second Cause of Action with leave to amend.

LEGAL STANDARD – Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.)

DISCUSSION – Motion to Strike

Meet and Confer

Per Code of Civil Procedure section 435.5, subdivision (a), Mad Atoms and Tan were required to meet and confer in person, by telephone, or by video conference before bringing this motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) Mad Atoms and Tan failed to meet and confer by any of these methods. (See Daryanavard Decl., ¶¶ 2-3.) Nevertheless, the Court may not deny a motion to strike for failure to adequately meet and confer. (Code Civ. Proc., § 435.5, subd. (a)(4).) The Court admonishes Mad Atoms and Tan to comply with the Code of Civil Procedure going forward.

Punitive Damages

A claim for punitive damages is subject to a motion to strike when the allegations fail to rise to the level of malice, oppression, or fraud necessary under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.)

Mad Atoms and Tan (collectively, Moving Parties) seek to strike Paragraph 64 and the prayer's request for punitive and exemplary damages on the ground that the Complaint alleges no ultimate facts of malice, oppression, or fraud under Civil Code section 3294. Moving Parties contend the allegations against Tan describe, at most, negligence and premises-liability omissions, and do not allege that he intended injury, acted with willful and conscious disregard, or engaged in fraud or oppression. They argue the Complaint pleads no officer, director, or managing-agent conduct required to impose punitive damages on Mad Atoms under section 3294, subdivision (b), relying instead on collective references to "Defendants." Moving Parties further argue that conclusory labels such as "willfully" and "greed" cannot substitute for pleaded facts showing a culpable state of mind. Finally, they contend punitive damages are unavailable on the wrongful-death claim because no felony-homicide conviction is alleged under section 3294, subdivision (d).

In opposition, Plaintiffs do not oppose striking punitive damages from the wrongful death cause of action and state they will amend to confine the request to the survival claim. Plaintiffs argue that punitive damages are expressly recoverable on the survival cause of action under Code of Civil Procedure section 377.34, subdivision (a), which the motion does not address. Plaintiffs contend the Complaint, read as a whole, pleads conscious disregard rather than mere negligence based on actual knowledge of a multi-year history of violent crime, permitted loitering, a refusal to take even costless precautions, and a revenue-driven motive. Plaintiffs also contend that *Penner v. Falk* and *O'Hara v. Western Seven Trees Corp.* required denial of a motion to strike on materially similar allegations. Plaintiffs submit that the allegations that Tan and Mad Atoms each owned and controlled the premises satisfy Civil Code section 3294, subdivision (b), at the pleading stage for a closely held LLC whose principal is a named co-defendant.

The Court finds the Complaint fails to allege sufficient facts to support Plaintiff's punitive damages claim as to the wrongful death claim, but not as to the survival action. The parties agree that punitive damages are generally unavailable for wrongful death claims except in cases involving a defendant's conviction for homicide. (Code Civ. Proc., § 377.61; Civ. Code, § 3294, subd. (d); Opp., 2:9-14; *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 796 ["Punitive damages are not available, however, in a statutory wrongful death action. [Citation.]".])

However, as noted above, the Court finds the Complaint alleges sufficient facts to support Plaintiff's claims against Tan and is sustaining the demurrer on other grounds. Mad Atoms did not demur to the Complaint, but the allegations against Moving Parties are largely the same, if not identical. (See generally Compl.) The Complaint alleges sufficient facts showing that Moving Parties either knew or had reason to know of the recurring violence problems at the property over a three-year period and that they failed to do anything to address it before Decedent's death. (Compl., ¶¶ 16-38.) These allegations are similar to those found sufficient in *Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.

Moving Parties raise new arguments regarding standing in their reply to support their motion to strike punitive damages. Generally, points raised for the first time in a reply are not permitted. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538; see also *Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1393, fn. 23 ["The general rule is that points raised for the first time in a reply brief will not be considered unless good cause is shown for the failure to present them before." [Citation.]".]) Since the standing arguments were raised for the first time in the reply, the Court declines to consider them.

Based on the foregoing, the Court GRANTS the motion to strike as to the wrongful death causes of action, but DENIES the motion as to the survival causes of action. The Court hereby STRIKES paragraph 64 of the Complaint as it pertains to the wrongful death causes of action without leave to amend.

CONCLUSION

The Court SUSTAINS Defendant Eng Tan's Demurrer to the First and Second Causes of Action in the Complaint with 20 days' leave to amend.

The Court GRANTS the motion to strike as to the wrongful death causes of action, but DENIES the motion as to the survival causes of action. The Court hereby STRIKES paragraph 64 of the Complaint as it pertains to the wrongful death causes of action without leave to amend.

Defendants Eng Tan and Mad Atoms, LLC are ordered to give notice of the Court's ruling within five calendar days of this order.